NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- V)

IA No. 16/2022
In C.A. (CAA)-112/230-232/ND/2021

IN THE MATTER OF:

Sections 230-232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

DIGICONTENT LIMITED,
Hindustan Times House, 2nd floor 18-20 Kasturba Gandhi Marg, New Delhi — 11000

.....Applicant No. 1/Transferor Company No. 1

AND

HT MOBILE SOLUTIONS LIMITED,
Hindustan Times House, 2nd Floor, 18-20 Kasturba Gandhi Marg, New Delhi – 110001

.....Applicant No. 2/Transferor Company No. 3

AND

HT MEDIA LIMITED,
18-20 Kasturba Gandhi Marg, New Delhi – 110001

.....Applicant No. 3/Transferee Company

ORDER DELIVERED ON: 03.02.2022

CORAM:
MR. ABNI RANJAN KUMAR SINHA, MEMBER (JUDICIAL)

MR. AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)

For Petitioner(s): Adv. Pooja Mahajan and Adv. Arveena Sharma

ORDER

AS PER MR. ABNI RANJAN KUMAR SINHA, MEMBER (JUDICIAL)

By filing this application, the applicant has prayed for following relief:

-

a. Allow the present application;

b. Rectify the clerical error in the Order dated 22nd December 2021 to the extent it states that the meeting of shareholders, secured creditors and unsecured creditors of the Applicant Companies has to be conducted within 30 days from the date of the Order;

c. Rectify the clerical error in the Order dated 22nd December 2021 to the extent of requirement of sending prescribed form of proxy along with and in addition to the scheme related documents in the light of notice dated 08th April 2020 issued by Ministry of Corporate Affairs, clarifying that the facility of appointment of proxies will not be applicable to meetings being held through video conferencing;

d. Clarify whether the requirement of sending individual notices to shareholders who's email addresses are not available with Transferor Company 1 and Transferee Company has been dispensed with.

e. Clarify whether the requirement of sending individual notices to secured creditors and unsecured creditors whose email addresses are not available with Transferee Company has been dispensed with.

f. Clarify whether the requirement of sending individual notices of convening meeting of the Secured Creditors of the Transferee Company to such Secured Creditors having an outstanding balance of INR 1 lakh or less, which represent only 0.71% (approx.) of the total value of secured creditors of the Transferee Company have been dispensed with;

g. Clarify whether the requirement of sending individual notices for convening meeting of the unsecured creditors of the Transferee Company to such Unsecured Creditors having an outstanding balance of INR 1 lakh or less, which represent only 0.75% (approx.) of the total value of unsecured creditors of the Transferee Company have been dispensed with;

h. Any such order which this Hon'ble Tribunal in the light of present facts and circumstances may deem fit.

2. Heard, the Learned Counsel appearing for the applicant and perused the averments made in the application.

3. Learned Counsel appearing for the applicant submitted that there is some clerical error in the order dated 22nd December, 2021, so same may be

rectified. She further submitted that sum clarification regarding sending individual notice to the shareholders also be required to be made. She further submitted that so far appointment of proxy is concerned, this facility for appointment of proxy will not be applicable to the meeting held through the video conferencing and in this regard, the Learned Counsel appearing for the applicant has placed reliance on the circular dated 08th April, 2022 issued by the Ministry of Corporate Affairs at page 54 of the application. She further submitted that in view of circular, there is no provision for proxy voting as provided under Section 105, if the meeting is convened through the video conferencing, so the order may be rectified.

4. In the light of submission, we consider the prayer made in the application. So far prayer (a) regarding the convening the meeting of the shareholder, secured creditor and unsecured creditor of the appellant company, within 30 days from the date of order is concerned, the same is hereby modified and it shall be read "so far the meeting of shareholder of the transferee company number -1 and transferor company number – 3 and the meeting of shareholders, secured creditors and unsecured creditors of transferee company as referred to in para 18 A (i), para 18 B (i), para 18 C (i) (ii) are concerned the notice of the meeting shall be sent through registered post or courier or by email, 30 days in advance before the scheduled date of the meeting, indicating the date, the place and the time aforesaid together with the proposed scheme, arrangement, copy of explanatory statement as required to be sent under the Company Act, 2013."

5. So far the prayer (b) of the applicant regarding the requirement of sending the prescribed form of proxy along with in addition to scheme related

documents is concerned , in view of notice dated 08th April 2020 issued by Ministry of Corporate Affairs, the appointment of proxy is not required, therefore, we hereby also modified that portion of the order, as we have given direction to convene the meeting through the video conferencing;, therefore, in terms of the circular dated 08th April 2020 (x), the direction for sending the documents to the proxy is hereby recalled, however, in pursuance of Section 112 and 113 of the Companies Act, 2013, the representative of the members may be appointed for the purpose of voting through remote e-voting or for participation and voting in the meeting held through video conferencing or OAVM. Accordingly, paragraph 18 (D) in respect of the proxy is hereby modified.

6. So far the prayer made in paragraph (d) (e) (f) and (g) are concerned, there is no confusion regarding the requirement of sending individual notice of convening the meeting of the secured creditors and unsecured creditors of the transferee company.

7. Therefore, the applicant is directed to comply that direction in the letter and spirit of that order.

8. With this the present application stands disposed of.

Sd/- 3/2/22

(AVINASH K. SRIVASTAVA)

Member (T)

Sd/- 03.02.2022

(ABNI RANJAN KUMAR SINHA)

Member (J)